

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 25, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

SCHEDULING MOTION HEARINGS: Please go to <https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri). to reserve a hearing date for your motion before you file and serve it. You must then file your motion papers no more than five court days after reserving the hearing date, or else the date will be released to other cases.

FOR COURT REPORTERS: The Court is no longer able to provide official court reporters for civil proceedings (as of July 24, 2017). If you want to have a court reporter to report your hearing, you must submit the appropriate form, which can be found here:

https://www.scscourt.org/general_info/court_reporters.shtml

RECORDING IS PROHIBITED: As a reminder, most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	17CV311946	YCS Investments, Inc. vs County of Santa Clara	Motion for Attorney's Fees Incurred in Appeal No. H051381 OFF CALENDAR. On June 11, 2026, Moving party/ The County of Santa Clara filed a notice of withdrawal of this motion that was accompanied by a proof of service on that same day.
LINE 2	21CV376417	Long Chen et al vs John Ly et al	Motion to Set Aside Default/ Judgment Scroll down to Line 2 for Tentative Ruling.
LINES 3-4	22CV397661	Shirley Long et al vs Barbara Kalman et al	Motion to Enforce Settlement On December 17, 2025, Defendants filed a motion to enforce the settlement pursuant to Code of Civil Procedure section 664.6. Plaintiff filed opposition papers. On February 3, 2026, the Plaintiff filed a motion to enforce the settlement pursuant to section 664.6. Defendants filed opposition papers. Parties are ordered to meet-and-confer about the motions and discuss whether parties can reach a stipulation on terms and narrow the scope. Parties are to file a joint statement updating the court by August 31, 2026. The motions are CONTINUED to September 3, 2026 at 9:00 a.m. in Department 1.
LINE 5	24CV429210	Neelima Naidu et al vs Deepika Jain et al	Motion Judgment on the Pleadings Scroll down to Line 5 for Tentative Ruling.
LINE 6	24CV454827	American Express National Bank vs Abhisek Roy	Motion for Summary Judgment/Adjunction Scroll down to Line 6 for Tentative Ruling.
LINES 7-8	25CV473100	AB Landscaping, Inc. vs Andrew J. Fry, et al	Demurrer (Line # 7) and Motion to Strike (Line #8) Scroll down to Lines 7-8 for Tentative Ruling.
LINE 9	25CV477635	Mid-Century Insurance Company vs Justin Collins	Motion to Compel Verified Responses to Form Interrogatories and Request for Sanctions Scroll down to Line 9 for Tentative Ruling.

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LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
<u>LINE 1</u>	24CV440130	Deluxe Windows and Clean Builders Company vs Gonzalez Family Realty LLC et al	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Line # 2

Case Name Long Chen et al vs John Ly et al

Case No. 21CV376417

Motion to Set Aside Default/ Judgment

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

On January 18, 2021, Plaintiffs Long Chen as an individual and personal representative of the estate of Angeline Chen, Dan Zhu, and Bojian Li (collectively “Plaintiffs”) filed a Complaint against Defendants Dynasty Group, Inc. dba Dynasty Chiense Seafood Restaurant (“Dynasty”), Asian Square Inc. dba Grand Century Shopping Mall (“Asian Square”), John Ly, Nancy Dao, and DOES 1-100 (collectively “Defendants”) for damages arising from an October 11, 2021 personal incident where a vehicle collided into the dining area in the parking lot Dynasty Restaurant. Angeline Chen was affianced to Bojian Li and they were dining with her parents Long Chen and Dan Zhu. Following the incident, Angeline Chen succumbed to her injuries. Plaintiffs allege six causes of actions including: negligence, negligent entrustment, premises liability, negligent infliction of emotional distress, wrongful death, and wrongful death. (Complaint).

B. RELEVANT PROCEDURAL BACKGROUND

The underlying issue in this present motion stems from Defendant Asian Square’s acceptances of offers to compromise under Code of Civil Procedure section 998 that was served by plaintiffs’ counsel Aimee Kirby. Within hours of Asian Square’s accepting the offers to compromise, plaintiffs’ counsel notified Asian Square that Plaintiffs Long Chen and Dan Zhu had not provided informed consent for these offers.¹ Defendant Asian Square refused to revoke the acceptances of the offers to compromise and argued that the judgment was valid upon acceptance.

On December 6, 2023 the clerk’s office entered the three judgments of Defendant Asian Square’s acceptance of offer to compromise under Code of Civil Procedure section 998 as follows: (1) Plaintiff Long Chen against the defendants Asian Square in the amount of \$500,000.00; (2) Plaintiff Bojian Li against the defendants Asian Square in the amount of \$1,000,000.00; and (3) Plaintiff Dan Zhu against the defendants Asian Square in the amount of \$500,000.00. Defendant Asian Square filed a notice of entry of the clerk’s judgment in favor of Plaintiffs Long Chen, Bojian Li, and Dan Zhu against Defendant Asian Square on December 28, 2023.

Plaintiffs’ counsel filed a motion to vacate the December 6, 2023 judgments for Plaintiffs Long Chen and Dan Zhu on January 18, 2024. The motion was continued to April 25, 2024, and then heard by the Honorable Drew Takaichi, who took the matter under submission. On June 3, 2024, Judge Takaichi issued an order denying the motion to vacate. Defendant Asian Square entered an order on June 6, 2024.

Plaintiffs Long and Chen filed a notice of Appeal, H052309 on July 3, 2024. On May 1, 2026, the Sixth Appellate District issued a Remittitur reversing the June 3, 2024 judgment issued by Judge Takaichi. The Appellate Court directed the court to consider the motion a new and consider Code of Civil Procedure section 283. (Plaintiff’s Exhibit A).

C. PRESENT MOTION

Before the Court is the Plaintiffs renewed motion to vacate the December 6, 2023 judgments concerning Plaintiffs Long Chen and Dan Zhu. On August 4, 2026, the plaintiff filed its supplemental and second motion to vacate the

¹ Plaintiff Bojian Li ratified Ms. Kirby’s service of the 998 offer to compromise, thus plaintiff Li is not part of this present motion to vacate.

December 6, 2023 judgements. The motion was accompanied by a proof of service indicating electronic service to defense counsel and counsel for plaintiff in interpleader. Notice is proper. Defendants filed an opposition brief on August 14, 2026.

The Plaintiff filed a reply brief on August 21, 2026.

The Court has carefully reviewed the plaintiffs August 4, 2026 notice of motion and memorandum of points and authorities (totaling 11 pages); Plaintiffs' Exhibit List and Evidence in support of the motion to vacate, including the Declaration of Christopher B. Dolan (Exhibit J) and Declaration of Aimee Kirby (Exhibit K) (totaling 164 pages); Defendants' opposition (totaling 20 pages); Plaintiff's Reply brief (totaling 11 pages); Plaintiff's August 18, 2024 motion to vacate (totaling 75 pages); Defendants' February 8, 2024 Opposition (totaling 19 pages); February 9, 2024 Declaration of Kevin Mintz in support of the Opposition (totaling 5 pages); Plaintiffs' February 9, 2024 Reply brief (10 pages); May 1, 2026, Remitter (totaling 12 pages); proof of service; and the pleadings.

II. PROCEDURAL VIOLATION

The Court notes procedural violation by the defendant. Defendant filed opposition papers on August 14, 2026. Per Code of Civil Procedure section 1005(b) opposition papers were to be filed by August 12, 2026. The opposition brief is untimely as they are two court days late.

The Plaintiff then filed a reply brief on August 21, 2026, which were on August 18, 2026 per Code of Civil Procedure section 1005(b).

California Rules of Court, rule 3.1300, subdivision (d) states, "No paper may be rejected for filing on the ground that it was untimely submitted for filing. If the court, in its discretion, refuses to consider a late filed paper, the minutes or order must so indicate."

Here, the Court balances the totality of circumstances, including judicial economy to avoid the expenditure of any further judicial resources, the court will look past the procedural violations and consider the defendants' opposition and the plaintiffs' reply brief on its merits. However, the parties are hereby admonished to comply with Rule of Court and Code of Civil Procedure. Any future violations may result in the court's refusal to consider untimely filed papers.

III. LEGAL STANDARD

A. CODE OF CIVIL PROCEDURE SECTION 283

Pursuant to Code of Civil Procedure section 283 in relevant portions provide that an attorney has the authority:

1. To bind his client in any of the steps of an action or proceeding by his agreement filed with the Clerk, or entered upon the minutes of the Court, and not otherwise;

(Code of Civ. Proc., § 281(1)). An attorney has the authority "to bind the client in procedural matters arising during the course of the action." (*Linsk v. Linsk* (1969) 70 Cal.2d 272, 276).

However, an attorney does not have the authority to "impair the client's substantial rights or the cause of action itself." (*Linsk, supra*, 70 Cal.2d at 276; see also, *Blanton v. Womancare, Inc.* (1985) 38 Cal.3d 396, 403). A "substantial right" includes the right to settle a case, which requires the attorney to have specific authorization of the client to settle and compromise a claim. The attorney does not have implied or ostensible authority to bind his or her

client to compromise a settlement of pending litigation. (*Blanton v. Womancare, Inc., supra*, 38 Cal.3d at 404, 403, quoting *Whittier Union High School Dist. v. Superior Court* (1977) 66 Cal.App.3d 504, 508).

B. CODE OF CIVIL PROCEDURE 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .

The mandatory provision of section 473(b) reads, in pertinent part, as follows:

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

The general underlying purpose is to promote the determination of actions on their merits. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830). Under this statute, an application for relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought and must be accompanied by an affidavit of fault attesting to the mistake, inadvertence, surprise or neglect of the moving party or its attorney. (Code of Civ. Proc., § 473(b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143).

Where an "attorney affidavit of fault" is filed, there is no requirement that the attorney's mistake, inadvertence, or neglect be excusable. Relief must be granted even where the default or dismissal resulted from inexcusable neglect by the attorney. (Robert E. Weil, et al., *California Practice Guide: Civil Procedure Before Trial* ¶ 5:495 (2018). For example, if an attorney voluntarily dismisses a case without authority from his or her client, this may be proof of the attorney acting beyond the scope of his or her authority. Upon evidence of strong and convincing factual proof that the attorney was unauthorized in disposing of the client's substantive rights, the court may exercise its inherent authority to vacate the dismissal. (*Romadka v. Hoge* (1991) 232 Cal.App.3d 1231, 1236).

IV. ANALYSIS

As a threshold matter, the court finds that the motion to vacate the motion was timely filed under section 473(b) as the plaintiffs filed the motion on January 18, 2024, a little after a month the judgments were entered on December 6, 2023. Moreover, the underlying issue arises from plaintiffs' counsel Aimee Kirby admitting that she conveyed offers to compromise under Code of Civil Procedure 998 without any consent by her clients, plaintiffs Long Chen and Dan Zhu. (Plaintiffs' motion, p. 2; Declaration of Kirby ¶6). Upon discovery this issue, within hours, plaintiffs' lead counsel, immediately notified the attorneys for Defendant Asian Square and explained why the offers extended were unauthorized. (Plaintiffs' Exhibit D). Plaintiffs Long Chen and Dan Zhu promptly objected to the entry of any judgment arising from the 998 agreements. However, Asian Square refused to revoke the agreements and argued that judgment was valid. On December 3, 2023, the clerk's office entered judgments

arising from a 998 offer to compromise, in favor of Plaintiffs Long Chen and Dan Zhu against Defendant Asian Box in the amount of \$500,000.00 each. (Plaintiffs' Exhibit B-C). Plaintiffs' counsel asserts that a 998 offer to compromise that is offered or accepted without the client's consent and authority is voidable by the client as the attorney is acting beyond the scope of his or her authority. Thus, upon proper proof of such evidence, the court has the inherent authority to vacate the judgment under Code of Civil Procedure section 283 and 473(b). (Plaintiff's motion, p. 2-3).

Defendants argue that the court's inherent authority is narrowly circumscribed to rescind settlements based on statutory offers to compromise under Code of Civil Procedure section 998. (Opposition, p. 8). The court's inherent authority should only be exercised necessary to "fill in holes" in statutory frameworks or where remedies or procedures are needed in order to perform "essential functions." (*Id.*, at p. 9, citing *Estrada v. Royalty Carpet Mills, Inc.* (2024) 15 Cal.5th 582; *Bauguess v. Paine* (1978) 22 Cal.3d 626, 635). Defendants assert that the court does not have authority to nullify the judgments in this matter as there is strong legislative policy regarding 998 offers to settle. (Opposition, p. 11). Defense does not argue that a recourse for the moving party includes seeking a malpractice action against their counsel rather than seeking to set aside the judgment entered in this matter.

Plaintiffs in its reply brief assert that the cases cited in defense briefs are inapplicable.

In the alternative, Defendant Asia Box to open discovery, including the deposition of Bojian Li, who is no longer part of the case against Asian Square, to determine the scope of the mistake. Plaintiffs oppose this request on the grounds that Asian Square has forfeited this argument as untimely.

Here, the Court finds that extending an offer to compromise under Code of Civil Procedure section 998 is more than merely procedural as upon acceptance, result in a settlement of the pending litigation. Upon acceptance, the plaintiffs would be precluded from pursuing the merits of the case and seeking further damages, aside from perhaps attorney's fees or costs. The entry of judgment of the offer to compromise would then likely result in dismissal of the case. Given the finality of a case resolving, an attorney cannot compromise or settle a claim without the express authority of his or her client. (*Robinson v. Hiles* (1953) 119 Cal.App.2d 666, 672; *see also Bowden v. Green* (1982) 128 Cal.App.3d 65; *Ambrose v. McDonald* (1878) 53 Cal. 28). It is essential for attorneys to communicate settlement offers and agreements to protect clients from "inordinately low settlements." (*Anand vs. California Dept. of Developmental Services* (2009) 626 F.Supp.2d 1061; 1065; citing *Levy v. Superior Court* (1995) 10 Cal.4th 578, 583). Thus, serving an offer to compromise without the consent and informed consent of Plaintiffs Chen and Zhu constitutes an attorney acting beyond the scope of her authority as plaintiffs' counsel. (*Romadka v. Hoge, supra*, 232 Cal.App.3d at 1236; *Whittier Union, supra*, 66 Cal.App.3d at 508).

Upon review, the court finds that there is strong and convincing factual proof that Plaintiffs Chen and Zhu did not grant authority to compromise, surrender, and essentially end their claims. Plaintiff's counsel Aimee Kirby does not contest that she did not have the consent of her clients, plaintiffs Chen and Zhu to extend a 998 offer to resolve their case for \$500,000.00 each. (Exhibit H, Declaration of Zhu ¶ 6-13; Exhibit I, Declaration of Chen ¶ 6-15; Exhibit J, Declaration of Dolan ¶ 27-28; Exhibit K, Declaration of Kirby ¶ 6). Similar to *Romadka v. Hoge, supra*, 232 Cal.App.3d at 1236, the plaintiffs' counsel acted beyond the scope of her authority to dispose of plaintiff Chen and Zhu's substantive rights. Thus, the court may exercise its inherent authority to vacate the dismissal. Dan Zhu attested, "I did not tell my attorneys, including Ms. Kirby, that she could make this offer for me." (Declaration of Zhu, ¶ 9; Declaration of Chen, ¶ 11). "Had I been asked I WOULD HAVE SAID NO to the idea of making such an offer, its amount, and allowing the defendants to accept the offer and terminate my case." (Declaration of Zhu, ¶ 10; Declaration of Chen, ¶ 12).

//

V. CONCLUSION

Based on the foregoing, the Plaintiffs' motion to vacate the December 6, 2023 judgments in favor of Plaintiff Long Chen and Dan Zhu and against Defendant Asian Square is GRANTED.

The defendant's request in their opposition for discovery on issues raised in this motion is DENIED without prejudice as the issue is not before the Court.

The Court will prepare the formal order.

Calendar Line # 5

Case Name Neelima Naidu et al vs Deepika Jain et al

Case No. 24CV429210

Motion Judgment on the Pleadings

Before the Court is defendants Carroll & Company and Pamela Jean Carroll-Gardiner's motion for judgment on the pleadings against plaintiffs Neelima Naidu, Prashanth Naidu, and Deepika Jain DDS and Neelima Naidu DDS, Inc.'s first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

This is an action arising from the sale of the dental practice Deepika Jain DDS and Neelima Naidu DDC, Inc. ("Blossom Hill Dental Center").

According to the operative first amended complaint ("FAC"), Defendants Carroll & Company and Pamela Jean Carroll-Gardiner (collectively, "Moving Defendants") were required by an escrow settlement statement between the buyer and seller of Blossom Hill Dental Center to keep a contingency hold-back of \$50,000.00. (FAC, ¶ 27). Moving Defendants were also required to pay the contingency hold-back to plaintiff Neelima Naidu within 90 days or upon the seller's showing that all financial obligations were met. (*Id.* at ¶ 28). Moving Defendants failed to do so. (*Id.* at ¶ 31).

The FAC alleges two causes of action against Moving Defendants: (1) breach of written contract II; and (2) declaratory relief. Specifically, the FAC alleges that Moving Defendants breached their written instructions from the escrow settlement statement. (FAC, ¶ 32). And Plaintiff Neelima Naidu ("Naidu") now seeks a judicial determination of her entitlement to the \$50,000 and an order requiring the Moving Defendants to pay her with said funds. (*Id.* at ¶ 57).

On June 11, 2026, Moving Defendants filed the present motion for judgment on the pleadings to the entire complaint. Plaintiff filed a timely written opposition.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." (Code of Civ. Proc., § 438(c)). "A motion for judgment on the pleadings has the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A motion for judgment on the pleadings is akin to a general demurrer; it tests the

sufficiency of the complaint to state a cause of action.” (*Wise v. Pacific Gas and Elec. Co.* (2005) 132 Cal.App.4th 725, 738).

Code of Civil Procedure section 438(e) sets forth a timeline for statutory motion for judgment on the pleadings, which must be made within 30 days of the date the action was initially set for trial, unless otherwise provided by the Court. However, this only applies to the statutory basis for the motion. (Code Civ. Proc., § 438.) Caselaw after the creation of that statute still recognizes grounds for a common law motion for judgment on the pleadings. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [recognizing that the motion may be made “at any time either prior to the trial or at the trial itself”]; see also *Cordova v. 21st Century Ins. Co.* (2005) 129 Cal.App.4th 89, 109 [summary judgment motion treated as a common law motion for judgment on the pleadings]; *Tarin v. Lind* (2020) 47 Cal.App.5th 395 [addressing merits of non-statutory motion]).

III. ANALYSIS

Moving Defendants move for judgment on the pleadings of Plaintiff's entire FAC. (Notice, p. 1:1-3). Moving Defendants, however, only argue that the breach of contract cause of action fails to state sufficient facts. (Motion, pp. 5-8). Moving Defendants make no argument challenging the declaratory relief cause of action.

As with a demurrer challenging an entire pleading, a motion for judgment on the pleading directed to an entire pleading fails if any cause of action is properly stated. (See *Warren v. Atchison, Topeka & Santa Fe Ry.* (1971) 19 Cal.App.3d 24, 29, 36 [trial court's sustention of demurrer to entire pleading reversed on ground that a cause of action was stated]; see also *Shook v. Pearson* (1950) 99 Cal.App.2d 348 [a demurrer which attacks entire pleading should be overruled if one of the counts therein is not vulnerable to the objection.]).

Given that Moving Defendants brings this motion challenging the FAC in its entirety and that Moving Defendants fail to bring any substantive argument challenging the declaratory relief cause of action, the Court DENIES Moving Defendants' motion for judgment on the pleadings.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion for judgment on the pleadings.

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Calendar Line # 6
Case Name American Express National Bank vs Abhisek Roy
Case No. 24CV454827
Motion for Summary Judgment/Adjunction
<u>I. BACKGROUND</u> This case stems from a credit card collections case between Plaintiff American Express National Bank (“Bank”) and Defendant Abhisek Roy (“Roy”). On December 16, 2025, Plaintiff Bank filed this motion for summary judgment against defendant Roy. The motion was accompanied by a proof of service indicating mail service to the plaintiff on that same day. Notice is proper. The motion is unopposed. Per Code of Civil Procedure section 437c(b)(4) opposition papers were due on August 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 8 pages); statement of undisputed material facts (totaling 4 pages); request for judicial notice (totaling 7 pages); evidence in support of the motion (totaling 2 pages); Declaration of Vivian Hinds in support of the motion and attached Exhibits A-C (totaling 139 pages); judgment (totaling 1 page); proposed order (totaling 2 pages); memorandum of costs (totaling 2 pages); proof of service; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (o)(1)). The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1)). If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (<i>Ibid</i>). “The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (<i>Ibid</i>). <u>III. ANALYSIS</u> Here, the complaint alleges a single cause of action against defendant Roy: breach of contract. The elements are: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach. (<i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230). Plaintiff’s motion is supported by evidence showing that defendant obtained a credit card account from plaintiff that was subject to a customer agreement contract; defendant accepted the terms of that contract by using the credit card; plaintiff extended credit and performed all its obligations under the contract; defendant breached the contract by not making all required payments; and plaintiff suffered damages of \$26,496.18 (i.e., the balance due on the credit card). The last payment on the account was on or about November 29, 2023. (Separate Statement #7). Plaintiff satisfied its initial burden as to both causes of action. Defendant did not oppose the motion. Plaintiff is entitled to summary judgment.

+Plaintiff filed a memorandum of costs on December 16, 2025, seeking \$956.99 in costs. Defendant forfeited any challenge to the amount of those costs by not timely filing a motion to tax costs. (Cal. Rules of Court, rule 3.1700(b)(1)).

IV. CONCLUSION

Based on the foregoing, Plaintiff's motion for summary judgment is GRANTED. Plaintiff has submitted a judgment indicating damages of \$26,496.18 in damages and \$956.99 in costs that the Court GRANTS and will authorize. The court will prepare the Order.

Calendar Lines # 7 - 8

Case Name AB Landscaping, Inc. vs Andrew J. Fry, as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al

Case No. 25CV473100

Demurrer (Line # 7) and Motion to Strike (Line #8)

I. BACKGROUND

This construction dispute arises from a Complaint alleging five causes of actions for breach of contract, foreclosure of mechanics lien, common count, quantum meruit, and payment of penalties that was filed on August 19, 2025 by Plaintiff. Defendants/Cross-Complainants Andrew J. Fry and Jin Z. Fry filed a cross-complaint alleging fourteen causes of actions on October 8, 2025.

On January 7, 2026, Cross-Defendants AB Landscaping, Inc. and Victor Arellano (collectively Cross-Defendants) filed this demurrer (Line # 7) to all causes of action (*i.e.*, first through fourth, seventh, ninth through twelfth, and fourteenth causes of action) and motion to strike (Line # 8). The motions are accompanied by proof of electronic service on cross-complainants' counsel on January 2, 2026.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL STANDARD

A. DEMURRER

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

B. MOTION TO STRIKE

Under Code of Civil Procedure section 435, "Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof." (Code Civ. Proc., § 435, subd. (b)(1)). Code of Civil Procedure section 436 provides:

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436). In ruling on a motion to strike, the court must assume the truth of the properly pleaded facts in the complaint or other pleading. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63).

III. ANALYSIS

Here, Cross-Defendants argue that the Cross-Complainant may not amend a challenged cross-complaint after an anti-SLAPP motion is filed in response to the motion. (Cross Defendants’ Demurrer Memorandum of Points and Authorities (“MPA”), p. 6, citing, *Contreras v. Dowling* (2016) 5 Cal.App.5th 394, 411-12). Even if the anti-SLAPP motion was not filed, Cross-Defendants aver that all causes of actions alleged in the Cross-Complaint is deficient.

On August 13, 2026, the Cross-Defendants’ filed a motion to strike the Cross-Complaints’ four causes of actions: (1) fifth cause of action, slander of title (invalid mechanics lien); (2) sixth cause of action, abuse of process/malicious prosecution; (3) eighth cause of action, declaratory relief (invalidity of lien; and (4) thirteen cause of action, quiet title, because appellate courts routinely hold the filing of a mechanics’ lien implicate a party’s right to petition. The motion was unopposed. After a hearing, Cross-Defendants’ anti-SLAPP was granted as to the fifth, sixth, eighth, and thirteenth cause of action after a hearing.

In the present motion, Cross-Defendants’ demurrers all causes of action: (1) first cause of action, breach of contract. Cross-Defendants argue that the first cause of action is pled with insufficient specificity. “Facts alleging a breach, like all essential elements of a breach of contract cause of action, must be pleaded with specificity.” Cross-Defendants assert that the cause of action does not state how performing work and providing material for payment constitutes a breach of contract (MPA, p. 6-7, citing, *Levy v. State Farm Mut. Auto. Ins. Co.* (2007) 150 Cal.App.4th 1, 5-6); (2) second cause of action, negligence; (3) third cause of action, violation of Business and Professions Code sections 7159 and 7159.5. Cross-Defendants argue that the Cross-Complaint fails to specific with particularity how sections 7159 and 7159.5 are applicable in a private cause of action. (MPA, p. 7-8); (4) fourth cause of action, breach of implied warranty of workmanlike construction; (5) seventh cause of action, enforcement of contractor’s license bond. Cross-Defendants argue that the Cross-Complaint fails to specific with particularity how section 7071.5 applies. (*Id.*, p. 9); (6) ninth cause of action, fraud and intentional misrepresentation. Cross-Defendants argue that no factual allegations were proffered as to when, where, to whom and by what means the representations were tendered. (*Id.*, at p. 10); (7) tenth cause of action, unjust enrichment. Cross-Defendants aver that Cross-Complainants fail to state an ultimate fact. (*Id.*, at p. 11); (8) eleventh cause of action, violation of Business and Professions Code section 7160. Cross-Defendants argue that no factual allegations were proffered as to when, where, to whom and by what means the representations were tendered. (*Id.*); (9) twelfth cause of action, conversion. Cross-Defendants argue that no specific chattel or specific thing or amount of money was alleged. (*Id.*, at p.12); and (10) fourteenth cause of action, breach of covenant of good faith and fair dealing.

The Cross-Defendants has met its burden on demonstrating that the Cross-Complaint does not state facts sufficient to constitute a cause of action. Cross-Complainants have failed to oppose the motion. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)).

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IV. CONCLUSION

Based on the foregoing, the unopposed demurrer to all causes of action is SUSTAINED with ten (10) days LEAVE TO AMEND.

The Cross-Defendants' motion to strike each cause of action is DENIED as procedurally improper and MOOT based on the court's ruling on the demurrer. The Court will provide the formal Order.

Calendar Lines # 9

Case Name Mid-Century Insurance Company vs Justin Collins

Case No. 25CV477635

Motion to Compel Verified Responses to Form Interrogatories and Request for Sanctions

I. BACKGROUND

This case stems from a subrogation claim arising from April 24, 2024 motor-vehicle accident. On October 15, 2025, Plaintiff Mid-Century Insurance Company ("Mid-Century") filed a Complaint for damages in the amount of \$41,216.86 against Defendant Justin Collins ("Collins").

Before the Court is Plaintiff Mid-Century's motion to compel verified responses to form interrogatories ("FROG"), set one, and sanctions that was filed on May 29, 2026. The motion is accompanied by a proof of service indicating electronic mail service on Defendant Collins's former attorneys of record, Jason J. Wasinda and Elizabeth Meyers. Subsequently, Defendants' counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and represented that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

The motion to compel is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: notice of motion to compel verified response to FROG, memorandum of points and authorities in support of the motion; Declaration of Megan A. Sarraile and attached Exhibits A- C (totaling 41 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2030.260(a), a party must respond to interrogatories within 30 days after service. If a party to whom interrogatories are directed does not provide a timely response, the propounding party may move for an order compelling response to the interrogatories. (*Id.*, § 2030.290, subd. (b)). There is no time limit for a motion to compel initial responses, and no meet and confer efforts are required. (See *Id.*, § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411). Nor must a separate statement be filed. (Cal. Rules of Court, rule 3.1345(b)(1)). In addition, a party who fails to provide a timely response generally waives all objections. (Code Civ. Proc., § 2030.290, subd. (a)).

A party must respond to interrogatories and document requests under oath. (Code Civ. Proc., §§ 2020.010(a), 2030.210(a); 2031.250(a)). An unverified discovery response is treated as no response. (*Steele v. Totah* (1986)

180 Cal.App.3d 545, 549; *Appleton v. Sup. Ct.* (1988) 206 Cal.App.3d 632, 636-37). In such a case, the propounding party may seek to compel verified responses. (*Id.*). Code of Civil Procedure section 2015.5 provides that a verification must be signed under penalty of perjury and state the date and place of execution. “[C]ourts do not find compliance with section 2015.5 to be both substantial and sufficient unless all statutory conditions appear on the face of the declaration in some form.” (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 612).

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173 (“In accordance with the liberal policies underlying the discovery procedures, California courts have been broad-minded in determining whether discovery is reasonably calculated to lead to admissible evidence). (*Id.* at 172; *see also*, *Pettie v. Superior Court* (1960) 178 Cal.App.2d 680, 687). As a practical matter, it is difficult to define at the discovery stage what evidence will be relevant at trial. Therefore, the party seeking discovery is entitled to substantial leeway. (*Pacific Tel. & Tel. Co., supra*, 2 Cal.3d at p. 172). The courts have taken the view if an error is made in ruling on a discovery motion, it is better that it be made in favor of granting discovery of the non-discoverable rather than denying discovery of information vital to preparation or presentation of the party's case or to efficacious settlement of the dispute.” (*Norton v. Superior Court* (1994) 24 Cal.App.4th 1750, 1761).

“As a general matter, the statutory scheme imposes no obligation on a party propounding interrogatories to establish good cause or prove up the merits of any underlying claims.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 550). Indeed, a litigant “is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (*Id.* at p. 541, citing *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 422).

III. ANALYSIS

Here, Plaintiff served initial discovery including FROGs, set one on January 21, 2026 on the defendant's then attorney of record. (Exhibit A, Declaration of Sarrail ¶ 3). On February 23, 2026, the defendant's counsel requested an extension to serve responses to March 10, 2026, which Plaintiff's granted. (Exhibit C attached to Declaration of Sarrail). Defendants served unverified responses on March 9, 2026, with a page noting “verification to follow.” (Exhibit B, Declaration of Sarrail ¶ 4). On May 15, 2026, Plaintiff's counsel submitted an email to defense stating she would seek a motion to compel unless verifications were provided by May 22, 2026. (Exhibit C). No verifications were provided at the time of the filing of the present motion. (Declaration of Sarrail ¶ 6).

Subsequently, in June 2026, Defendants' counsel filed a motion to be relieved as counsel indicating an inability to communicate with the defendant and that Defendant Collins obtained Nicholas Wilcox as new counsel of record. On July 14, 2026, Elizabeth Meyers appeared and was ordered to provide notice of the next court date, which is this present motions date and the motion to withdraw was granted.

Over five months have lapsed since responses to FROGs were served without verification, which is required. An unverified discovery response is treated as no response. (*Steele v. Totah, supra*, 180 Cal.App.3d at 549).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 12, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court GRANTS the motion to compel verifications to the FROGs.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290(c), when a party moves to compel initial responses to interrogatories, “the court ***shall*** impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes [the motion], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.290, subd. (c)(emphasis added)).

Plaintiff’s counsel seeks a total of \$660.00 in sanctions for pursuing this motion. Plaintiff’s counsel seeks two hours for work expended on this motion and an anticipated hour for appearing on the motion at the hourly rate of \$200.00. Plaintiff’s counsel seeks \$60.00 for costs expended on filing this motion.

The Court notes that no opposition papers were filed, thus no time required for review of an opposition or prepare a reply brief. Further, an appearance on an unopposed motions prospective. The Court GRANTS two hours of time expended on the motion at the requested hourly rate of \$200.00 as well as the \$60.00 in costs for filing fees. Thus, the sanctions is awarded in the total amount of \$460.00.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel verified responses to FROGS, set one. The Defendant is to provided verifications to the response to FROGs he served on March 9, 2026 within twenty (20) days from this hearing. The Court GRANTS sanctions against Defendant Collins in the amount of \$460.00. Defendant is to pay the sanctions amount within twenty (20) days from this hearing.

The Court will prepare the formal Order.